

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

BAKARY CAMARA,

Plaintiff,

v.

THE CITY OF NEW YORK, a municipal entity;
New York Police Department ("NYPD") Police
Officer ("P.O.") DAVID KIM; NYPD P.O.
JOSEPH HERNANDEZ; NYPD P.O. "JOHN
DOES" 1-7,

Defendant.

INDEX NO.

SUMMONS

Plaintiff designates New York County as the
County of Venue based on the location where
the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney,
at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer
must be served within 20 days after such service of the summons, excluding the date of
service.

If the summons was not personally delivered to you within the State of New York, the
answer must be served within 30 days after service of the summons is complete as provided
by law.

If you do not serve an answer to the attached complaint within the applicable time
limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in
the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for
the County of New York. This action is brought in New York County because it is the place
in which the claim arose.

Dated: February 25, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: _____

David B. Rankin

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BAKARY CAMARA,

Plaintiff,

**COMPLAINT AND
DEMAND FOR A JURY TRIAL**

Index No.

-v-

THE CITY OF NEW YORK, a municipal entity;
New York Police Department ("NYPD") Police
Officer ("P.O.") DAVID KIM; NYPD P.O. JOSEPH
HERNANDEZ; NYPD P.O. "JOHN DOES" 1-7,

Defendant.
-----X

Plaintiff Bakary Camara, by his attorneys, Beldock, Levine & Hoffman LLP, for his
complaint, alleges as follows:

PRELIMINARY STATEMENT

1. The is a civil rights action brought to vindicate Plaintiff's rights under the First, Fourth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims under the laws of the State of New York.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") used gratuitous, unlawful force against Plaintiff and unconstitutionally and without any legal basis seized, detained, arrested, and searched him. By reason of defendants' actions, Plaintiff was deprived of their constitutional rights and suffered physical, emotional, and economic injury.

3. Plaintiff seeks an award of compensatory and punitive damages in addition to attorneys' fees.

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PARTIES

4. Plaintiff BAKARY CAMARA is and was at all times relevant to this action a resident of New York State.

5. Defendant THE CITY OF NEW YORK (“City”) is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, Defendant City was the employer of the police officers whose conduct caused Plaintiff’s injuries.

6. New York City Police Department (“NYPD”) Police Officer (“P.O.”) DAVID KIM (“P.O. Kim”), Shield No. 9742, and NYPD P.O. JOSEPH HERNANDEZ (“P.O. Hernandez”), Shield No. 21888 (referred to collectively as the “individual defendants”), are and were at all times relevant herein, officers, employees and agents of the NYPD.

7. The individual defendants are being sued herein in their individual and official capacities under federal law.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents

and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

9. The true names and shield numbers of defendants NYPD P.O. JOHN DOES 1-7 are not currently known to the plaintiff.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in this action.

10. The individual defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff’s rights.

11. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

JURISDICTION

12. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the First, Fourth, and Fourteenth Amendments to the Constitution of the United States, and under the laws of New York State.

13. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a Notice of Claim with the New York City Comptroller, and the Comptroller designated the claim as number 2021PI006747.

¹ By identifying said defendants as “John Doe,” Plaintiff is making no representations as to the gender of said defendants.

14. Plaintiff's claims were not adjusted by the New York City Comptroller's Office.
15. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

VENUE

16. Venue is properly laid in the Supreme Court of the State of New York, County of New York, as the incident occurred in New York County.

JURY DEMAND

17. Plaintiff demands a trial by jury in this action on each one of his damage claims.

STATEMENT OF FACTS

18. On November 27, 2020, at approximately 1:30 a.m., in the Herald Square subway station at or around 34th Street and 6th Avenue in the County of New York, members of the New York Police Department ("NYPD") assaulted and arrested Mr. Camara without justification or probable cause.

19. Upon information and belief, the individual defendants singled out Mr. Camara because he was homeless.

20. In arresting Mr. Camara, NYPD officers used unwarranted and excessive force against him.

21. At least one of the individual defendants punched Mr. Camara multiple times.

22. Mr. Camara was falsely charged and was deprived of his liberty.

23. As a result of the officers' unlawful conduct, Mr. Camara also sustained physical, emotional, and other injuries.

24. The NYPD members whose actions caused injury to Mr. Camara were acting under color of law as agents, employees and/or officers of Defendant THE CITY OF NEW YORK.

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**FIRST CLAIM FOR RELIEF
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983**

25. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

26. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law to deprive plaintiff of certain constitutionally protected rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to free speech and assembly;
- b. the right to be free from unreasonable search and seizure;
- c. the right to be free from excessive force;
- d. the right to be free from arrest without probable cause;
- e. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention plaintiff was aware and to which he did not consent;
- f. the right to equal protection, privileges, and immunities under the laws;

27. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

28. As a direct and proximate result of the individual defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

29. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

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SECOND CLAIM FOR RELIEF
ASSAULT AND BATTERY

30. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

31. By the actions described above, Defendants did inflict assault and battery upon Plaintiff.

32. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

33. The individual defendant officers assaulted Plaintiff without cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

34. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT

35. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

36. By the actions described above, Defendants caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

37. Defendants caused to be falsely detained and imprisoned or falsely detained and imprisoned Plaintiff without legal justification, without the consent of Plaintiff, and while Plaintiff was aware of such detention and imprisonment.

38. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

39. The individual defendant officers arrested, detained, and imprisoned Plaintiff without probable cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

40. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM FOR RELIEF
INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

41. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

42. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

43. The individual defendant officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

44. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
BIAS-BASED PROFILING

45. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

46. By initiating law enforcement action against Plaintiffs based on their actual and/or perceived housing status, rather than Plaintiffs' behavior or other information linking them to suspected unlawful activity, Defendants and Defendants' agents engaged in bias-based profiling in violation of N.Y.C. Admin. Code § 14-151(c)(1)(i) and (ii).

SIXTH CLAIM FOR RELIEF
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK

47. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

48. The conduct of the individual defendants alleged herein, occurred while he or she was on duty and in uniform, and/or in and during the course and scope of his or his duties and functions as NYPD officers, and/or while he or she was acting as an agent and employee of defendant City, clothed with and/or invoking state power and/or authority, and, as a result,

defendant City is liable to plaintiff pursuant to the state common law doctrine of respondeat superior.

49. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF
NEGLIGENT HIRING, SCREENING, RETENTION

50. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

51. Defendant THE CITY OF NEW YORK negligently hired, screened, and retained the NYPD officers who engaged in the conduct underlying Plaintiff's claims. The acts and conduct of Defendant in negligently hiring, screening, and retaining its police officers were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

52. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

EIGHTH CLAIM FOR RELIEF
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

53. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

54. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of his rights, privileges, and immunities secured by Article 1, §§ 8, 9,

11, and 12 of the New York State Constitution, including, without limitation, the following deprivations of rights, privileges, and immunities:

- i. freedom from unlawful restrictions to speech and assembly;
- ii. freedom from unreasonable search and seizure of their person and property;
- iii. freedom from arrest without probable cause;
- iv. freedom from false imprisonment and from being wrongfully detained without cause or legal justification, and of which Plaintiff was aware and did not consent; and
- v. freedom from deprivation of liberty without due process of law.

55. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, Plaintiff demands judgment against Defendants and prays for relief as follows:

- a. that he be compensated for violation of his rights, pain, suffering, mental anguish and humiliation; and
- b. that he be awarded punitive damages; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. for such other further relief as to the Court may deem just and proper.

Dated: February 25, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: 
David B. Rankin